

SENATE No. 1574

The Commonwealth of Massachusetts

PRESENTED BY:

Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act preserving access to hospital services.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>

SENATE No. 1574

By Mr. Mark, a petition (accompanied by bill, Senate, No. 1574) of Paul W. Mark and Michael D. Brady for legislation to preserve access to hospital services. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1406 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act preserving access to hospital services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws as appearing in the 2022 Official Edition is hereby
2 amended by adding at the end of section 51G the following new section:

3 (7) The department, in conjunction with other state departments or agencies, shall
4 promulgate regulations creating a process for state receivership for any hospital or free-standing
5 clinic that provides essential health services and (a) closes without providing the required 90-day
6 notice or (b) closes a hospital or free-standing clinic following a determination by the department
7 that closure would constitute a discontinuation of services necessary for preserving access and
8 health status in the hospital or free-standing clinic's service area. These regulations shall include
9 a mechanism and source for funding said receivership.